[Public Land Order 5373]

[Idaho 07510]

IDAHO

Withdrawal for National Forest Recreation Area

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952 (17 FR 4831), it is ordered as follows:

1. Subject to valid existing rights, the following described national forest lands are hereby withdrawn from appropriation under the mining laws, 30 U.S.C. Ch. 2, but not from leasing under the mineral leasing laws, in aid of programs of the Department of Agriculture:

BOISE NATIONAL FOREST

BOISE MERIDIAN

Sage Hen Reservoir Recreation Area

T. 11 N., R. 2 E.,
sec. 2, lots 1 thru 4;
sec. 3, lot 1.
T. 12 N., R. 2 E.,
sec. 34, SE¼NE¼, E½SE¼;
sec. 35, N½N½, E½E½SE¼NE¼, W½NE¼SW¼NE¼, NW¼SW¼NE¼, N½SE¼NW¼, N½SW¼NW¼, W½SE¼SW¼NW¼, SW¼SW¼NW¼, E½NE¼SE¼, E½W½NE¼SE¼, W½E½NW¼SW¼, W½NW¼SW¼, SE¼SE¼, E½SW¼SE¼, E½W½SW¼SE¼, W½SW¼SW¼SE¼, E½SE¼SE¼SW¼, SW¼SE¼SE¼SW¼, S½SW¼SE¼SW¼, SE¼SE¼SW¼SW¼, W½E½SW¼SW¼, W½SW¼SW¼;
sec. 36, NW¼NW¼, SW¼NW¼, NW¼SW¼.

The areas described aggregate 728.59 acres in Gem and Valley Counties.

2. The withdrawal made by this order does not alter the applicability of those public land laws governing the use of the national forest lands under lease, license, or permit, or governing the disposal of their mineral or vegetative resources other than under the mining laws.

JACK O. HORTON,
Assistant Secretary of the Interior.

JULY 30, 1973.

[FR Doc.73-16090 Filed 8-3-73;8:45 am]

[Public Land Order 5374]

[New Mexico 16184]

NEW MEXICO

Partial Revocation of Executive Orders 6143, 6276, and 6583

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952 (17 FR 4831), it is ordered as follows:

1. Executive Orders No. 6143 of May 23, 1933, No. 6276 of September 8, 1933, and No. 6583 of February 3, 1934, withdrawing lands in New Mexico to aid the State of New Mexico in making exchange selections, as provided for by the Act of June 15, 1926, 44 Stat. 746-748, are hereby revoked so far as they affect the following described lands:

NEW MEXICO PRINCIPAL MERIDIAN

T. 20 S., R. 3 W.,
sec. 7, SE¼;
sec. 8, SW¼, N½SE¼;
sec. 9, SW¼;
sec. 17, N½NW¼.
T. 21 S., R. 6 W.,
sec. 24, N½;
sec. 26, NE¼SE¼.
T. 17 S., R. 7 W.,
sec. 6.
T. 19 S., R. 7 W.,
sec. 31, NE¼, NE¼NW¼.
T. 19 S., R. 8 W.,
sec. 21, NE¼, NE¼NW¼, S½NW¼;
sec. 22, SW¼NW¼.
T. 20 S., R. 8 W.,
sec. 8.
T. 20 S., R. 10 W.,
sec. 17, NE¼NE¼, SE¼NW¼, NE¼SW¼, NW¼SE¼.
T. 20 S., R. 11 W.,
sec. 11, E½, E½NW¼, SW¼;
sec. 14;
sec. 15, SE¼.
T. 26 S., R. 10 W.,
sec. 28, E½SW¼;
sec. 30, lots 3 and 4;
sec. 31, lots 1 thru 4, S½NE¼, SE¼NW¼, E½SW¼, SE¼;
sec. 32, SE¼;
sec. 33, NW¼, W½SW¼, SE¼;
sec. 34, S½.
T. 27 S., R. 10 W.,
sec. 15, S½SW¼;
sec. 22, N½NW¼.
T. 28 S., R. 10 W.,
sec. 4, NW¼SE¼, S½SE¼;
sec. 9, E½;
sec. 21, E½;
sec. 30, lots 3, 4, E½SW¼, SE¼;
sec. 33, E½.
T. 19 S., R. 11 W.,
sec. 23, N½S½;
sec. 24, S½NE¼, N½SW¼, NW¼SE¼.
T. 24 S., R. 11 W.,
sec. 18, S½SE¼;
sec. 19, lots 1 thru 4, E½W½;
sec. 21, W½NW¼;
sec. 27, SW¼;
sec. 28, E½;
sec. 30, NE¼;
sec. 31, lots 3, 4, E½SW¼;
sec. 34, W½.
T. 25 S., R. 11 W.,
sec. 19, NE¼SW¼, N½SE¼, SE¼SE¼;
sec. 30, lot 1, N½NE¼, SW¼NE¼, NE¼NW¼, W½SE¼.
T. 26 S., R. 11 W.,
sec. 3, S½SW¼;
sec. 4, S½S½;
sec. 5, S½SE¼;
sec. 7, lot 4, N½NE¼, SE¼NW¼, E½SW¼, SW¼SE¼;
sec. 8, NW¼NW¼, SE¼;
sec. 9, S½;
sec. 10, NE¼, S½;
sec. 11, S½;
sec. 12, S½;
sec. 17, NE¼, SW¼, SW¼SE¼;
sec. 18, lots 1, 4, E½, E½SW¼;
sec. 19, lots 1, 2, NE¼, E½NW¼;
sec. 20, E½NW¼;
sec. 21, E½;
sec. 22, N½;
sec. 23, W½;
sec. 26, W½;
sec. 27, SW¼, S½SE¼;
sec. 28, SW¼;
sec. 29, N½NW¼, SE¼NW¼, E½SW¼;
sec. 33, E½W½;
sec. 34, E½;
sec. 35, NW¼NE¼, S½NE¼, NW¼.
T. 27 S., R. 11 W.,
sec. 1, NE¼;
sec. 13, S½;
sec. 24, N½;
sec. 28, N½SW¼;
sec. 29, SW¼NE¼, S½NW¼, NE¼SE¼;
sec. 30, lot 2, NW¼NE¼, S½NE¼, SE¼NW¼.
T. 24 S., R. 12 W.,
sec. 15, E½SE¼;
sec. 19, lots 1, 2, NE¼, E½NW¼;
sec. 20, N½;
sec. 22, NE¼NE¼.
T. 25 S., R. 13 W.,
sec. 15, S½S½;
sec. 22, N½N½;
sec. 33, S½;
sec. 34, S½;
sec. 35, S½.
T. 26 S., R. 13 W.,
sec. 6, lots 1, 2, SW¼NE¼, SE¼NW¼, E½SW¼, W½SE¼;
sec. 7, W½E½, E½W½;
sec. 11, E½;
sec. 14, NE¼, S½;
sec. 15, S½;
sec. 17, S½;
sec. 18, W½NE¼, E½W½, SE¼;
sec. 19, NE¼NE¼;
sec. 20, NW¼NW¼;
sec. 23, E½NE¼, SE¼;
sec. 24, E½SW¼;
sec. 25, W½NE¼, W½;
sec. 26, NW¼NE¼, E½NW¼, NE¼SW¼;
sec. 28, S½S½;
sec. 30, S½SE¼;
sec. 31, lots 1 thru 4, N½NE¼, E½W½;
sec. 34, SW¼NE¼, SE¼NW¼, E½SW¼, W½SE¼;
sec. 35, N½NE¼, SW¼NE¼, N½SW¼, SW¼SW¼, NW¼SE¼.
T. 27 S., R. 13 W.,
sec. 1, lot 2, SW¼NE¼, W½SE¼;
sec. 3, lots 2, 3, SW¼NE¼, SE¼NW¼, NE¼SW¼, S½SW¼, NW¼SE¼;
sec. 4, S½S½;
sec. 5, S½S½;
sec. 6, lots 3 thru 7, SE¼NW¼, E½SW¼, SE¼;
sec. 7;
sec. 8, N½N½;
sec. 9, N½N½;
sec. 10, N½NW¼;
sec. 12, E½NW¼, W½SW¼;
sec. 13, NW¼;
sec. 15, N½;
sec. 19, lots 1 thru 4;
sec. 22, W½W½;
sec. 34, N½N½;
sec. 35, N½N½.
T. 27 S., R. 14 W.,
sec. 4, NW¼SE¼;
sec. 8, SE¼;
sec. 9, NE¼NE¼, S½NE¼, E½W½, SE¼;
sec. 10, SE¼;
sec. 11, S½;
sec. 13, E½, N½NW¼;
sec. 14, N½, NE¼SE¼;
sec. 15, N½N½;
sec. 24, E½;
sec. 25;
sec. 26, SE¼;
sec. 35, N½N½.

The areas described aggregate approximately 29,215.66 acres of land in Dona Ana, Grant, Luna and Sierra Counties, of which 1,600 acres are privately owned.

The topography consists of broad nearly level to gently sloping semi-desert plains from which rise relatively narrow, but steep and rugged mountain ridges, isolated peaks and ranges of hills. The elevation ranges between 3,500 to 5,500 feet. Soils are shallow to moderately deep sandy loams. Vegetation is of the southwestern desert shrub type, of which the most common are creosote bush, mesquite, cacti, black grama, tobosa and dropseed grasses.

2. At 10 a.m. on September 4, 1973, the public lands described in paragraph 1 of this order shall be open to the operation of the public land laws generally, sub-

ject to valid existing rights, the provisions of existing withdrawals, and the requirements of applicable law. All valid applications received at or prior to 10 a.m. on September 4, 1973, shall be considered as simultaneously filed at that time. Those received thereafter shall be considered in the order of filing.

3. The lands shall be open to location for nonmetalliferous minerals at 10 a.m. on September 4, 1973. They have been and continue to be open to applications and offers under the mineral leasing laws and to locations under the United States mining laws for metalliferous minerals.

Inquiries concerning the lands should be addressed to the Chief, Division of Technical Services, Bureau of Land Management, P.O. Box 1449, Santa Fe, New Mexico 87501.

JACK O. HORTON,
Assistant Secretary of the Interior.

JULY 30, 1973.

[FR Doc.73-16091 Filed 8-3-73;8:45 am]

Title 47—Telecommunication

CHAPTER I—FEDERAL COMMUNICATIONS COMMISSION

[Docket No. 19735; FCC 73-803]

PART 73—RADIO BROADCAST SERVICES

FM Broadcast Station in Lyon, Kans.

In the matter of Amendment of § 73.202(b), Table of assignments, FM broadcast stations. (Lyons, Kansas)

1. On May 9, 1973, the Commission issued a notice of proposed rule making (FCC 73-489, 38 F.R. 13386) in the above-entitled matter, proposing the substitution of Channel 291 for Channel 288A at Lyons, Kansas. The proceeding was instituted on the basis of a petition filed by Rice County Broadcasting Co., Inc., licensee of Station KLOQ(FM), Lyons, Kansas. Station KLOQ is presently operating on Channel 288A which is the sole assignment in Lyons. Interested parties were invited to comment on the proposal on or before June 22, 1973, and could reply to such comments on or before July 3, 1973. There were no oppositions to the proposal. Supporting comments were filed by petitioner.

2. Lyons, population 4,355, is the seat of Rice County, population 12,320.[1] There are no standard broadcast stations in Rice County.

3. Petitioner points out that it desires to switch from a Class A to a Class C assignment so that it may increase the power and antenna height of its station (KLOQ) to enlarge its present service area. It maintains that the increased coverage is necessary for competitive position in the market, and if the switch is made, it immediately intends to increase power to 25 Kw and tower height to 500 feet. It contends that based on the FCC method of prediction of service, this increase in facilities would bring a first FM service to 193 people and a second to 23,374. Preclusion areas occur in the co-channel and five of the six pertinent adjacent channels as a result of the assignment of Channel 291 to Lyons. However, most of the communities located within these areas either have or can be assigned FM broadcast channels. In supporting comments, petitioner states that through a number of carefully planned steps over a period of years as the audience responds to this new medium, he intends to build Station KLOQ to 100 Kw circular polarization with a tall tower.

4. The Commission would ordinarily assign a Class A channel to a community the size of Lyons, but under the above circumstances the proposal to substitute Channel 291 for Channel 288A at Lyons, has public interest value and is worthy of adoption, in our view, because it is a reasonable means to provide a first and second FM service to 193 and 23,374 persons, respectively. Since Channel 291 can be assigned to Lyons and used at the present site without any other changes in the Table and in full conformity with all spacing requirements, we believe it should be granted.

5. The authority for the action taken herein is contained in Sections 4(i), 303(g) and (r), and 307(b) of the Communications Act of 1934, as amended.

6. Accordingly, *It is ordered*, That effective September 7, 1973, the Table of FM Assignments (§ 73.202(b) of the rules) is amended with respect to the city listed below as follows:

City	Channel No.
Lyons, Kansas	291

7. *It is further ordered*, That effective September 7, 1973, and pursuant to section 316(a) of the Communications Act of 1934, as amended, the outstanding license held by Rice County Broadcasting Co., Inc., for Station KLOQ(FM), Lyons, Kansas, is modified to specify operation on Channel 291 in lieu of Channel 288A subject to the following conditions.

(a) The licensee shall inform the Commission in writing by no later than September 27, 1973, of its acceptance of this modification.

(b) The licensee shall submit to the Commission by September 7, 1973, all necessary information complying with the applicable technical rules for modification of authorization to cover the operation of Station KLOQ(FM) on Channel 291 at Lyons, Kansas.

(c) The licensee may continue to operate on Channel 288A under its outstanding authorization until it is ready to operate on the new frequency. Ten days prior to commencing operation on Channel 291, the licensee shall submit the same measurement data normally required in an application for an FM broadcast station license.

(d) The licensee shall not commence operation on Channel 291 until the Commission specifically authorizes it to do so.

8. *Is is further ordered*, That this proceeding is terminated.

(Secs. 4, 303, 307, 48 Stat., as amended, 1066, 1082, 1083; 47 U.S.C. 154, 303, 307.)

By the Commission.

Adopted: July 26, 1973.

Released: July 31, 1973.

FEDERAL COMMUNICATIONS COMMISSION,[2]
[SEAL] VINCENT J. MULLINS,
Acting Secretary.

[FR Doc.73-16138 Filed 8-3-73;8:45 am]

PART 87—AVIATION SERVICES

General Operator Requirements; Miscellaneous Amendment

In the matter of editorial amendment of Part 87 of the Federal Communications Commission's rules and regulations.

1. The Commission, by Memorandum Opinion and Order adopted December 8, 1971, granted a petition for reconsideration filed by the Aerospace and Flight Test Radio Coordinating Council to exempt certain aircraft stations from the requirement that operators hold a third class license or higher. Section 87.133 was thereby amended to limit the third class operator requirement to stations utilizing frequencies below 30 MHz not exclusively allocated to the aeronautical mobile service, or stations utilizing frequencies above 30 MHz not allocated exclusively to aeronautical mobile services and which are assigned for international use. This limitation was imposed to comply with Article 23 of the Radio Regulations of the International Telecommunication Union (ITU). Since Article 23 of the ITU Radio Regulations apply only to aircraft stations, it was the Commission's intention to require a third class or higher operator permit to aircraft stations operating in the frequency bands specified above. Section 87.133 is therefore editorially amended to eliminate any possible misinterpretation of the third class operator or higher requirement as applying to other classes of stations other than aircraft stations.

2. This amendment is editorial in nature, and hence the prior notice, and effective date provisions of 5 U.S.C. 553 are not applicable. Authority for the promulgation of this amendment is contained in Section 4(i) and 303(r) of the Communications Act of 1934, as amended, and § 0.231(d) of the Commissions rules.

3. Accordingly, *It is ordered*, effective August 10, 1973. That Part 87 of the rules and regulations is amended as set forth below.

Adopted: July 30, 1973.

Released: July 31, 1973.

FEDERAL COMMUNICATIONS COMMISSION.
[SEAL] JOHN M. TORBET,
Executive Director.

Section 87.133 is amended as follows:

§ 87.133 General operator requirements.

Except as provided for in §§ 87.134, 87.139 or as limited on the face of the

[1] Population figures cited are from the 1970 U.S. Census.

[2] Commissioner H. Rex Lee absent.